

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Judge Philip A. Brimmer



ORIGINAL

Civil Action No. 08-cv-00495-PAB-MJW

REGISTRY SYSTEMS INTERNATIONAL, LTD.,

Plaintiff,

v.

1 DOMAIN SOURCE, LTD.,

Defendant

VINCENT HAMM and
AIM HIGH!, INC.,

Defendants, Counterclaimants, and Third Party Plaintiffs,

v.

EDWARD J. SWEENEY, and
CAPITAL NETWORKS, PTY., LTD.,

Third Party Defendants.

**SPECIAL VERDICT FORM B - VINCENT HAMM AND AIM HIGH'S
COUNTERCLAIMS AND THIRD PARTY CLAIMS**

We, the jury, present our Answers to the Questions submitted by the Court, to which we have all agreed:

BREACH OF CONTRACT

QUESTION NO. 1: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their breach of contract claim against Edward Sweeney?

ANSWER No. 1: No (yes or no)

QUESTION NO. 2: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered damages as a result of Edward Sweeney's breach of contract?

ANSWER No. 2: No (yes or no)

QUESTION NO. 3: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their breach of contract claim against RSI?

ANSWER No. 3: YES (yes or no) ^{SW} _{CM}

QUESTION NO. 4: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered damages as a result of RSI's breach of contract?

ANSWER No. 4: YES (yes or no) ^{SW} _{CM}

If you answered either Question No. 1 or Question No. 2 "No" and either Question No. 3 or Question No. 4 "No," go to Question No. 6. If you answered both Question No. 1 and Question No. 2 "Yes" and/or both Question No. 3 and Question No. 4 "Yes," answer Question No. 5.

QUESTION NO. 5: What is the total amount of Vincent Hamm's and/or Aim High's actual damages resulting from the breach of contract claim against Edward Sweeney and RSI? Actual damages are those damages described in Instruction No. 36-37. You should answer "0" if you determine there were none. If you answered yes to Question 1 or Question 3, but you determined that Vincent Hamm and/or Aim High suffered no actual damages as a result of the breach of contract, you shall nonetheless award him nominal damages of one dollar.

ANSWER No. 5: \$ 0 \$44,315 ^{SW} _{CM}

CONVERSION

QUESTION NO. 6: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their conversion claim against Edward Sweeney?

ANSWER No. 6: YES (yes or no)

QUESTION NO. 7: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered damages as a result of Edward Sweeney's conversion of their property?

ANSWER No. 7: YES (yes or no)

If you answered either Question No. 6 or Question No. 7 "No," go to Question No. 9. If you answered both Question No. 6 and Question No. 7 "Yes," answer Question No. 8.

QUESTION NO. 8: What is the total amount of Vincent Hamm's and/or Aim High's actual damages resulting from their claim of conversion against Edward Sweeney? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 8: \$ 3500

FRAUD

QUESTION NO. 9: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their claim for fraud against RSI?

ANSWER No. 9: No (yes or no)

QUESTION NO. 10: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered damages as a result of RSI's fraudulent conduct?

ANSWER No. 10: No (yes or no)

QUESTION NO. 11: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their claim for fraud against Edward Sweeney?

ANSWER No. 11: No (yes or no)

QUESTION NO. 12: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered damages as a result of Edward Sweeney's fraudulent conduct?

ANSWER No. 12: No (yes or no)

If you answered either Question No. 9 or Question No. 10 "No" and either Question No. 11 or Question No. 12 "No," go to Question No. 14. If you answered both Question No. 9 and Question No. 10 "Yes" and/or both Question No. 11 and Question No. 12 "Yes," answer Question No. 13.

QUESTION NO. 13: What is the total amount of the Vincent Hamm's and/or Aim High's actual damages resulting from their claim of fraud? Actual damages are those damages described in Instruction No. 40. You should answer "0" if you determine there were none.

ANSWER No. 13: \$ 0

PROMISSORY ESTOPPEL

QUESTION NO. 14: Did Vincent Hamm prove by a preponderance of the evidence his promissory estoppel claim against Edward Sweeney?

ANSWER No. 14: No (yes or no)

QUESTION NO. 15: Did Vincent Hamm prove by a preponderance of the evidence that he suffered resulting damages from his reliance on the promises of Edward Sweeney?

ANSWER No. 15: No (yes or no)

QUESTION NO. 16: Did Vincent Hamm prove by a preponderance of the evidence his promissory estoppel claim against RSI?

ANSWER No. 16: ~~Yes~~ No (yes or no)

QUESTION NO. 17: Did Vincent Hamm prove by a preponderance of the evidence that he suffered resulting damages from his reliance on the promises of RSI?

ANSWER No. 17: ~~Yes~~ No (yes or no)

If you answered either Question No. 14 or Question No. 15 "No" and either Question No. 16 or Question No. 17 "No," go to Question No. 19. If you answered both Question No. 14 and Question No. 15 "Yes" and/or both Question No. 16 and Question No. 17 "Yes," answer Question No. 18.

QUESTION NO. 18: What is the total amount of the Vincent Hamm's actual damages resulting from his claim of promissory estoppel? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 18: \$ ~~44,315~~ \$0

UNJUST ENRICHMENT

QUESTION NO. 19: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their unjust enrichment claim against RSI?

ANSWER No. 19: No (yes or no)

QUESTION NO. 20: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered resulting damages from RSI's unjust enrichment?

ANSWER No. 20: No (yes or no)

QUESTION NO. 21: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their unjust enrichment claim against Edward Sweeney?

ANSWER No. 21: No (yes or no)

QUESTION NO. 22: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered resulting damages from Edward Sweeney's unjust enrichment?

ANSWER No. 22: No (yes or no)

QUESTION NO. 23: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence their unjust enrichment claim against Capital Networks, PTY?

ANSWER No. 23: No (yes or no)

QUESTION NO. 24: Did Vincent Hamm and/or Aim High prove by a preponderance of the evidence that they suffered resulting damages from Capital Networks, PTY's unjust enrichment?

ANSWER No. 24: No (yes or no)

If you answered either Question No. 19 or Question No. 20 "No," either Question No. 21 or Question No. 22 "No," and either Question No. 23 or Question No. 24 "No," go to Question No. 26. If you answered both Question No. 19 and Question No. 20 "Yes," both Question No. 21 and Question No. 22 "Yes," and/or both Question No. 23 and Question No. 24 "Yes," answer Question No. 25.

QUESTION NO. 25: What is the total amount of the Vincent Hamm's and/or Aim High's actual damages resulting from their claim of unjust enrichment? Actual damages are those damages described in Instruction No. 16. You should answer "0" if you determine there were none.

ANSWER No. 25: \$ Ø

We, the jury, find for Vincent Hamm and Aim High!, Inc. an actual award of damages of:

\$ 3,500 against Edward Sweeney

\$ 44,315 against Registry Systems International, Ltd.

\$ Ø against Capital Networks, PTY, Ltd.

Signatures of all jurors:

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